

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MARK FORD,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER SAVOY,
BADGE NO. UNKNOWN, POLICE OFFICER "JOHN
DOE 1" BADGE NUMBER UNKNOWN, POLICE
OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN,
AND SEVERAL UNIDENTIFIED POLICE
OFFICERS ASSIGNED TO POLICE SERVICE AREA
(PSA7),

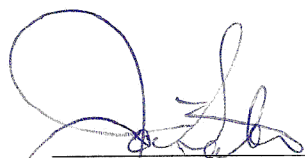
Defendants.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
February 16, 2021



SANTANA LAW FIRM
Attorney for Plaintiff
MARK FORD
778 Castle Hill Avenue
Bronx, New York 10473
(718) 792 2000

Defendant's address:
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK



COUNTY OF BRONX

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MARK FORD,

Index No:

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

CITY OF NEW YORK, POLICE OFFICER SAVOY,
 BADGE NO. UNKNOWN, POLICE OFFICER "JOHN
 DOE 1" BADGE NUMBER UNKNOWN, POLICE
 OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN,
 POLICE OFFICER "JOHN DOE 3", BADGE NUMBER
 UNKNOWN AND SEVERAL UNIDENTIFIED POLICE
 OFFICERS ASSIGNED TO POLICE SERVICE AREA
 (PSA7),

Defendants.
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Plaintiff, MARK FORD, by and through his attorney SANTANA LAW FIRM,
 complaining of Defendants CITY OF NEW YORK, POLICE OFFICER SAVOY, BADGE NO.
 UNKNOWN, POLICE OFFICER "JOHN DOE 1" BADGE NUMBER UNKNOWN, POLICE
 OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, AND SEVERAL
 UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA (PSA7),
 respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still
 is a municipal corporation duly organized and existing under and by virtue of the General
 Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents
 servants and employees operated, maintained and controlled the New York City Police
 Department, including all the police officers thereof.

3. That at all times hereinafter mentioned, Defendants POLICE OFFICER “JOHN DOE 1”, BADGE NUMBER UNKNOWN was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE 1”, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE 1”, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

9. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS were employed by Defendant CITY OF NEW YORK as police officers.

10. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS acted within the scope of their employment for Defendant CITY OF NEW YORK ASSIGNED TO POLICE SERVICE AREA 7 (hereinafter referred to as "PSA 7), located at 757 Melrose Avenue, Bronx, New York.

11 That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

12 On November 23, 2019 at approximately 7:00 P.M., Plaintiff, MARK FORD was lawfully in front of 380 E. 143 Street, in the County of Bronx, City and State of New York when he was approached by members of the New York City Police Department including Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7.

13 That, at the aforementioned date, time and place, Defendants POLICE OFFICER "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 approached Plaintiff MARK FORD. Plaintiff was handcuffed and taken into custody and transported to the PSA 7 despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

14. That on November 23, 2019 at approximately 7:00 P.M., Defendant CITY OF NEW

YORK by and through its employees including Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA7, without legal process, forcibly, wrongfully and unlawfully arrested Plaintiff MARK FORD.

15. Plaintiff, MARK FORD, was then transported to PSA7 where his arrest was processed. The Plaintiff, MARK FORD, was held at PSA 7 for a significant period of time. Plaintiff was deprived of his liberty for a significant period of time.

16. That on November 23, 2019, Defendants CITY OF NEW YORK by and through its employees including Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, initiated criminal proceedings including, but not limited to, an arrest, process, detention at a PSA 7 detention at Central Booking appearance despite Defendants’ knowledge that they lacked probable cause to do so.

17. That on or about January 14, 2020, Summons No: 4445685022 was “declined to prosecute” in the Criminal Court of the City of New York – Bronx County).

18. That prior to, and within ninety (90) days from the date of injury, Plaintiff duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

19. Upon information and belief, the Municipal 50H Hearing regarding the above claim was held on August 31, 2020.

20. This action is commenced within one year and ninety days after the cause of action arose.

21. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

22. Plaintiff MARK FORD repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

23. That at the aforementioned time and place, Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA7, placed Plaintiff, MARK FORD, under arrest despite Defendants’ knowledge that he lacked probable cause to do so.

24. That Plaintiff MARK FORD has not committed any offense and Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA7 did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

25. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS

ASSIGNED TO PSA7 were aware that probable cause did not exist for the arrest and detention of Plaintiff, MARK FORD, and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff, MARK FORD, and such actions were committed in bad faith.

26. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JANE DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff, MARK FORD, and such actions were committed in bad faith.

27. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, all committed under color of his authority as a police officer, and while acting in that capacity, Plaintiff, MARK FORD, was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

28. As a further result of the above-described acts, Plaintiff, MARK FORD, was deprived

of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

29. Plaintiff, MARK FORD, repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That Plaintiff, MARK FORD, was falsely imprisoned on November 23, 2019 for approximately five (5) hours, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JANE DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

31. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 intended to confine Plaintiff, MARK FORD, and Plaintiff, MARK FORD, was conscious of the confinement, and Plaintiff, MARK FORD, did not consent to the confinement.

32. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff, MARK FORD, and damaging Plaintiff

MARK FORRD, in his reputation and depriving him of his liberty.

33. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff, MARK FORD, suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

34. Plaintiff, MARK FORD, repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 misrepresented and falsified evidence before the District Attorney.

36. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 did not make a complete and full statement of facts to the District Attorney.

37. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN,

“JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”,
BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO PSA 7 withheld exculpatory evidence from the District Attorney.

38. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN,
“JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”,
BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO PSA 7 were directly and actively involved in the initiation of criminal
proceedings against Plaintiff, MARK FORD.

39. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN,
“JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”,
BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO PSA 7 lacked probable cause to initiate criminal proceedings against Plaintiff
DAVID HANSON.

40. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN,
“JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”,
BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO PSA 7 acted with malice in initiating criminal proceedings against Plaintiff,
MARK FORD.

41. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN,
“JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”,
BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO PSA 7 were directly and actively involved in the continuation of criminal

proceedings against Plaintiff MARK FORD.

42. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 lacked probable cause to continue criminal proceedings against Plaintiff DAVID HANSON.

43. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 acted with malice in continuing criminal proceedings Plaintiff , MARK FORD.

44. That Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 misrepresented and falsified evidence throughout all phases of the criminal proceeding.

45. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 the criminal proceedings were terminated in Plaintiff MARK FORD’s favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

46. Plaintiff, MARK FORD, repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

47. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, MARK FORD.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff, MARK FORD, as alleged herein.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff, MARK FORD, as alleged herein.

52. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 while acting under the color of state law, was directly and actively involved in violating Plaintiff, MARK FORD’s constitutional rights.

53. All of the foregoing acts by Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 deprived Plaintiff, MARK FORD of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

54. Plaintiff, MARK FORD, repeats, reiterates and realleges each and every allegation contained in this complaint.

55. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff, MARK FORD’s behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

56. As a result of the aforementioned conduct of the individual Defendants, Plaintiff MARK FORD's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

57. Plaintiff, MARK FORD, repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

58. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 arrested Plaintiff, MARK FORD, in the absence of probable cause and without a warrant.

59. As a result of the aforesaid conduct by Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED PSA 7 Plaintiff, MARK FORD, was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

60. The aforesaid actions by Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE PSA 7 constituted a deprivation of Plaintiff MARK FORD's rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

61. Plaintiff, MARK FORD, repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

62. As a result of the foregoing, Plaintiff, MARK FORD, was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

63. Plaintiff, MARK FORD, was conscious of said confinement and did not consent to same.

64. The confinement of Plaintiff, MARK FORD, was without probable cause and was not otherwise privileged.

65. As a result of the aforementioned conduct, Plaintiff, MARK FORD, has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW**

66. Plaintiff, MARK FORD, repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

67. On or about November 23, 2029, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, commenced a criminal proceeding against Plaintiff, MARK

FORD, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

68. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 continued said proceeding despite the fact that they knew or should have known that Plaintiff, MARK FORD, had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

69. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 were directly and actively involved in the initiation of criminal proceedings against Plaintiff, MARK FORD.

70 Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2,” BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 lacked probable cause to initiate criminal proceedings against Plaintiff, MARK FORD.

71. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 were motivated by actual malice in initiating criminal proceedings against Plaintiff DAVID HANSON.

72. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 misrepresented and falsified evidence before the District Attorney.

73. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 did not make a complete and full statement of facts to the District Attorney.

74. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 withheld exculpatory evidence from the District Attorney.

75. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 were directly and actively involved in the continuation of criminal proceedings against Plaintiff, MARK FORD.

76. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 lacked probable cause to continue criminal proceedings against Plaintiff, MARK FORD.

77. Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN

DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 were motivated by actual malice in continuing criminal proceedings against Plaintiff, MARK FORD.

78. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHNN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, the criminal proceedings were terminated in Plaintiff MARK FORD’s favor.

AS AND FOR A NINTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION
UNDER NEW YORK STATE LAW

79. Plaintiff MARK FORD repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

80. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, “JOHN DOE 1”, BADGE NUMBER UNKNOWN, POLICE OFFICER “JOHN DOE 2”, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees

lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

81. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2" BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION
UNDER NEW YORK STATE LAW

82. Plaintiff, MARK FORD, repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

83. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including

Plaintiff MARK FORD. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

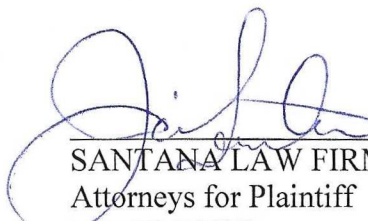
864 The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, POLICE OFFICER "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7 in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff, MARK FORD.

85. As a result of the foregoing, Plaintiff, MARK FORD, is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff, MARK FORD, demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER SAVOY, BADGE NUMBER UNKNOWN, "JOHN DOE 1", BADGE NUMBER UNKNOWN, "JOHN DOE 2", BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO PSA 7, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three

Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: Bronx, New York
February 16, 2021



SANTANA LAW FIRM
Attorneys for Plaintiff
MARK FORD
778 Castle Hill Avenue
Bronx, New York 10473
(718) 702-2000

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF BRONX)

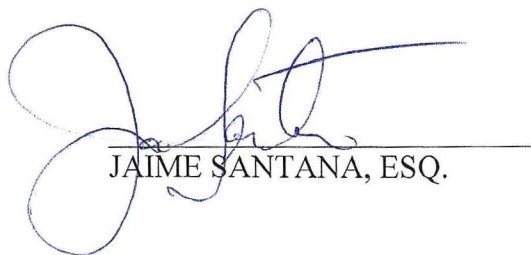
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York
February 16, 2021


JAIME SANTANA, ESQ.